

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT**

v.

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.'S
MOTION TO COMPEL DISCOVERY**

MOTION MADE BY:

Donald F. Burke, Esq.
Law Office of Donald F. Burke

Paul Donovan, Esq.
LaRoe Winn Moerman & Donovan
Attorneys for Complainant Port Elizabeth Terminal &
Warehouse Corp.

RETURN DATE:

As set by the Presiding Officer.

RELIEF SOUGHT:

(i) an order pursuant to 46 C.F.R. §502.150 compelling Respondent Port Authority of New York and New Jersey, to provide more specific answers to interrogatories, produce documents and provide a privilege log.

GROUND FOR RELIEF:

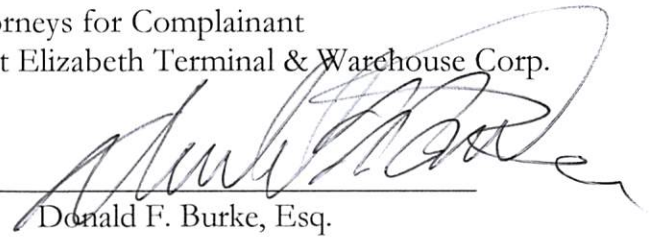
46 C.F.R. §502.150.

SUPPORTING PAPERS:

Memorandum of Law and Certification of Counsel with exhibits attached thereto.

LAW OFFICE OF DONALD F. BURKE
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By: _____



Donald F. Burke, Esq.

Dated: November 14, 2017

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**BRIEF IN SUPPORT OF PORT ELIZABETH TERMINAL & WAREHOUSE
CORP. MOTION TO COMPEL DISCOVERY**

I. Preliminary Statement

Pursuant to 46 C.F.R. §502.150, Respondent, Port Elizabeth Terminal & Warehouse Corp., respectfully submits this motion for an order of the Presiding Officer to compel the Port Authority of New York and New Jersey ("PANYNJ") to produce:

- (1) Information documents including correspondence and e-mails withheld by PANYNJ as identified in deficiency letters attached to Certification of Counsel as Exhibits C and D; and
- (2) A privilege log pursuant to Rule 26 of the Federal Rules of Civil Procedure for all documents and information withheld by the PANYNJ on the grounds of privilege.

II. Procedural History and Statement of Facts Regarding Motion to Compel

1. Complainant Port Elizabeth Terminal & Warehouse Corp. Answered PANYNJ's First Set of Interrogatories and Requests for Production of Documents on November 1, 2017 as required by the September 19, 2017 Scheduling Order.

2. On November 2, 2017, PANYNJ filed its responses to Complainant Port Elizabeth Terminal & Warehouse Corp.'s discovery requests.
3. On November 6, 2017, Complainant Port Elizabeth Terminal & Warehouse Corp. provided letters to counsel for PANYNJ setting forth deficiencies which are attached to the Certification of Counsel submitted herewith as Exhibits C and D.
4. Complainant Port Elizabeth Terminal & Warehouse Corp.'s efforts to resolve this matter without resort to motion practice have been unavailing.
5. The Scheduling Order entered in this matter requires expert reports to be exchanged on or before November 16, 2017 and discovery ends on January 8, 2018.
6. In light of the above, Complainant Port Elizabeth Terminal & Warehouse Corp. respectfully requests that this motion to compel be resolved expeditiously.

LEGAL ARGUMENT

PORT ELIZABETH TERMINAL & WAREHOUSE CORP. IS ENTITLED TO AN ORDER COMPELLING PANYNJ TO PROVIDE INFORMATION, DOCUMENTS

A. Discovery Provisions Are to be Applied Broadly and Liberally

(i) Scope of Discovery

The scope of discovery in Shipping Act matters is broad. 46 C.F.R. §502.141

(c) provides:

(1) Unless otherwise limited by the presiding officer, or as otherwise provided in this subpart, the scope of discovery is as follows: Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. For good cause, the presiding officer may order discovery of any matter relevant to the subject matter involved in the action. Relevant information need not be

admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence.

(ii) **Withholding Information and Documents on the Grounds of Privilege**

Federal Rule of Civil Procedure 26(a)(5) provides:

(A) *Information Withheld.* When a party withholds information otherwise discoverable by claiming that the information is privileged or subject to protection as trial-preparation material, the party must:

(i) expressly make the claim; and

(ii) describe the nature of the documents, communications, or tangible things not produced or disclosed—and do so in a manner that, without revealing information itself privileged or protected, will enable other parties to assess the claim.

In order for privilege to be asserted successfully, and “to qualify for non-disclosure, a document must have been (1) prepared by an attorney or his agent; and (2) must have been prepared in anticipation of litigation.

B. **Complainant Port Elizabeth Terminal & Warehouse Corp. is Entitled to a Privilege Log Regarding Documents and Information Withheld From Disclosure by the PANYNJ**

The deficiency letters attached to the Affidavit of Counsel submitted herewith sets forth the categories of information and documents withheld by the Port Authority based on the Port Authority’s claim that the information sought is privileged, however, Respondent Port Authority has not provided a privilege log in conformance with Federal Rule of Civil Procedure 26(b)(5).

C. **For The Reasons Set Forth In The Deficiency Letters Attached To The Affidavit, Complainant Port Elizabeth Terminal & Warehouse Corp. Is Entitled To Information and Records Withheld By Respondent PANYNJ As Well As A Privilege Log Regarding Documents and Information Withheld**

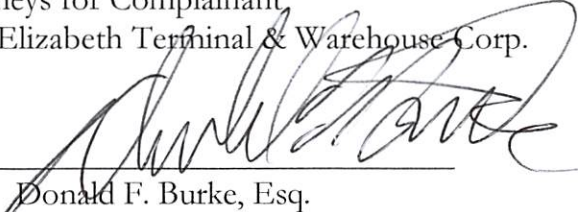
For the reasons set forth in the deficiency letters sent to PANYNJ, which are attached to the Affidavit of Counsel for Complainant **Port Elizabeth Terminal &**

Warehouse Corp., it is respectfully requested that the Commission grant Complainant Port Elizabeth Terminal & Warehouse Corp.'s Motion by ordering PANYNJ to produce:

- (1) The information and documents requested but withheld from disclosure by PANYNJ as identified in the deficiency letters dated November 3, 2017; and
- (2) A privilege log pursuant to Rule 26 of the Federal Rules of Civil Procedure for all documents withheld on the ground of privilege.

LAW OFFICE OF DONALD F. BURKE
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.

By: _____


Donald F. Burke, Esq.

Dated: November 14, 2017

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**CERTIFICATION OF COUNSEL IN SUPPORT COMPLAINANT PORT
ELIZABETH TERMINAL & WAREHOUSE CORP.'S MOTION TO COMPEL
DISCOVERY**

I, Donald F. Burke, Esq., of full age, do certify as follows:

1. I am an attorney at law and I represent Complainant Port Elizabeth Terminal & Warehouse Corp. in the above captioned matter.
2. I make this Certification in Support of Complainant Port Elizabeth Terminal & Warehouse Corp.'s Motion to Compel pursuant to 46 C.F.R. §502.150.
3. I have conferred in good faith or attempted to confer with Respondent Port Authority of New York and New Jersey (PANYNJ) regarding its responses to discovery in an effort to obtain compliance without the necessity of a motion.
4. A copy of the discovery requests for which evasive or incomplete responses have been given is attached as Exhibit A.
5. A copy of the responses of PANYNJ is attached as Exhibit B.

6. A copy of the letter setting forth deficiencies in PANYNJ Answers to Interrogatories is attached as Exhibit C.

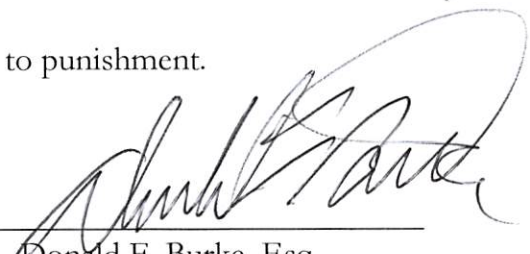
7. A copy of the letter setting forth deficiencies in PANYNJ Document Request is attached as Exhibit D.

8. A request for relief and supporting argument is submitted herewith as Brief In Support of Port Elizabeth Terminal & Warehouse Corp. Motion to Compel Discovery as well as the deficiency letters, Exhibits C and D.

9. For the reasons set forth in these motion papers, Complainant Port Elizabeth Terminal and Warehouse Corp. respectfully requests relief as set forth in the proposed form of Order submitted herewith.

I certify that the foregoing statements made by me are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

By: _____


Donald F. Burke, Esq.

Dated: November 14, 2017